

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUBC056420: HARALAMBOS VLAVIANOS vs BMW OF NORTH AMERICA LLC
07/30/2026 in Department 44
Motion for Summary Judgment

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiffs’ Motion for Summary Judgment/MSA (*opposed*)

Tentative Ruling:

Plaintiffs Motion for Summary Judgment, or in the alternative, Summary Adjudication is DENIED. There are triable issues of fact as to how many times Plaintiffs brought the car in for service (UMF 10); the nature of the vehicle’s problems vehicle (UMFs 13, 16); and whether those repair efforts were successful (UMF 35) that prevent summary judgment and adjudication of each of the four causes of action presented.

The extent to which *Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189 might bar the first three causes of action for Song-Beverly Act relief is also an open question and is unresolved in this motion. To the extent that Plaintiffs also seek summary adjudication on seven issues, they have not established facts that would dispose of a cause of action, issue of duty, claim for damages or an affirmative defense. Additionally, Plaintiffs separate statement does not meet the standard of California Rule of Court 3.1350 in that they did not identify the facts related to the issues they request to be adjudicated.

II. Preliminary Matters

A. Undisputed Material Facts

The following facts are undisputed: 5, 6, 11, 19-26, 28, 29, 31-34.

The following facts are disputed but established: 1, 2, 3, 4, 8, 9, 12, 17, 27.

The following facts are not established: 7, 10, 13, 16, 18, 30, 35.

B. Rules of Court

The Rules of Court govern the length and format of law and motion papers, to include that no opening or responding memorandum in support of or in opposition to a summary judgment motion may exceed 20 pages absent leave of court (See Cal. R. Ct., rule 3.1113(d).); the font must be at least 12 points (Cal. R. Ct., rule 2.104); conforming exhibits that are appropriately indexed, tabbed or bookmarked, and paginated (Cal. R. Ct., rules 2.256(b) and 3.1110(f).) Additionally, the separate statement must separately identify each cause of action, claim for damages, or affirmative defense that is the subject of the motion. (Cal. R. Ct., rule 3.1350, subd. (c) and (d).) Noncompliance with these rules may be a basis for the Court to disregard the papers, and in some cases, deny the requested relief. (See Code Civ. Proc. §§ 187 & 128; see also *Bozzi v. Nordstrom* (2010) 186 Cal.App.4th 755, 765 [trial court has broad discretion to refuse to consider papers that do not comply with rule 3.1300(d)].) Here, Plaintiff's separate statement fails to identify the facts associated with each of the 7 issues they seek to adjudicate, or to identify which facts are relevant to each of the four causes of action alleged.

III. Background

A. Established Facts in Support of the Motion

In July 2024, Plaintiffs, Haralambos Vlavianos and Tyla Vlavianos, purchased a used 2021 BMW X5 45e, a hybrid vehicle that is a Transitional Zero Emissions Vehicle ("TZEVE"). During the repair history alleged in the First Amended Complaint, the subject vehicle remained within approximately 70,000 miles and within the applicable time and mileage parameters governed by the operative TZEVE emissions warranty framework.

Defendant BMW of North America, LLC is the distributor of BMW motor vehicles sold in California and is registered to do business in California. Plaintiffs presented the subject vehicle to authorized BMW dealerships for repair on multiple occasions. The July 2025 repair visit involved drivetrain malfunction warnings and hybrid battery temperature warnings. The repair records repeatedly reference repairs covered under the TZEVE emissions warranty framework. The repair records reference "provided photo documentation of consequential damage in warranty app."

BMW dealerships repeatedly represented that repairs had been completed and returned the vehicle to Plaintiffs. At least one repair visit resulted in the vehicle remaining at the dealership for approximately eleven weeks. BMW dealerships did not charge Plaintiffs diagnostic fees during the prior repair attempts reflected in the repair records. BMW dealerships performed the prior repair attempts reflected in the repair records at no cost to Plaintiffs. BMW dealerships repeatedly accepted the vehicle for diagnosis and repair without requiring Plaintiffs to authorize customer- pay diagnostic procedures. On or about January 13, 2026, Plaintiffs were advised that the vehicle repair was complete and that the cooling system had been repaired and replaced. Plaintiffs retrieved the vehicle on or about January 15, 2026.

Plaintiffs incurred damages including loss of use, repeated dealership visits, inconvenience, and extended periods without possession of the vehicle during the repeated repair history. BMW never charged Plaintiffs for the prior repair attempts reflected in the repair records. BMW's authorized dealerships repeatedly accepted the vehicle for warranty-related diagnosis and repair.

BMW's First Amended Complaint Answer does not identify any specific act of misuse, abuse, or unauthorized modification of the subject vehicle. BMW's First Amended Complaint Answer does not identify any specific maintenance failure alleged to have caused the repeated repair history reflected in the repair orders. BMW's First Amended Complaint Answer admits Plaintiffs presented the vehicle for repair but denies that BMW failed to conform the vehicle to warranty. The repair history reflected in the repair records existed before the January 30, 2026 incident alleged in the First Amended Complaint. Plaintiffs' claims are based in substantial part upon the repeated unsuccessful repair history reflected in the repair records generated before January 30, 2026.

B. Procedural History

Plaintiffs filed the original Complaint on December 17, 2025, and the operative complaint, the First Amended Complaint ("FAC") on April 6, 2026. The FAC alleging 3 causes of action under the Song-Beverly Warranty Act for breach of the express warranty under Civil Code sections 1791.2 and 1793.2, and generally for breach of "warranty obligations" of the Song-Beverly Act generally, and for failure to repair to repair the vehicle after a reasonable number of attempts under Civil Code section 1793.2(d). Plaintiff's fourth cause of action is for "breach of statutorily mandated TZEV and hybrid warranty obligations asserted under California Code of Regulations, Title 13, section 2037(b), adopted pursuant to authority granted under Health and Safety Code section 43205.

On May 6, 2026, this Court denied Plaintiffs preliminary injunction request for an immediate authorization for the BMW dealership of Las Vegas: to conduct a diagnostic evaluation, refrain from charging Plaintiff a diagnostic fee, provide Plaintiffs with a loaner car, preserve all records related to the vehicle, or to repair Plaintiffs' car.

On May 11, 2026, Plaintiffs filed this motion for summary judgment, or in the alternative summary adjudication of 7 issues:

1. That Defendant BMW OF NORTH AMERICA, LLC issued and performed under applicable express warranty obligations concerning the subject vehicle;
2. That Plaintiffs presented the subject vehicle to authorized BMW repair facilities on multiple occasions for warranty-related diagnosis and repair;
3. That Defendant and its authorized repair facilities performed repeated warranty repairs on the subject vehicle without charging Plaintiffs diagnostic or repair fees;
4. That Defendant failed to conform the subject vehicle to warranty after a reasonable number of repair attempts;
5. That Plaintiffs suffered damages arising from Defendant's repeated unsuccessful repair attempts and failure to conform the vehicle to warranty;
6. That the subject vehicle was certified as a Transitional Zero Emission Vehicle ("TZEV") for sale in California and remained within applicable time and mileage parameters during the operative repair history alleged in the First Amended Complaint;
7. That Defendant's affirmative defenses based upon misuse, abuse, improper maintenance, or unauthorized modification are unsupported by specific facts identified in Defendant's First Amended Complaint Answer and Affirmative Defenses

Defendant opposes Plaintiffs' motion, asserting that Plaintiffs' Song-Beverly Warranty Act claims fail under *Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189, because the vehicle was not a new vehicle. As to the fourth cause of action, Defendant asserts that Plaintiffs moving papers demonstrate that Defendant acted in conformity with California Code of Regulations, Title 13, Section 2037(b) by providing Plaintiffs with a TZEV warranty and performing cost-free repairs to the subject vehicle in accordance with that warranty. Thus, Plaintiffs' own allegations defeat the claim.

IV. Discussion

A. Legal Standard: Summary Judgment and Summary Adjudication

The purpose of summary judgment is to enable courts to determine whether trial is actually necessary by cutting through the parties' pleadings. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) Strict compliance with Code of Civil Procedure section 437c safeguards the constitutional right to jury trial.

Summary judgment is proper only where there are no triable issues of fact as to all causes of action. (Code Civ. Proc. 437c(c).) Unless the notice of motion duly gives notice that summary adjudication of issues, in the alternative to summary judgment, is also sought, the Court cannot consider adjudication of issues. (*Gonzales v. Superior Court* (1987) 189 Cal.App.3d 1542, 1545-46.) When a motion for summary adjudication is brought in the alternative, the Court is authorized to summarily adjudicate that one or more causes of action has no merit, that one or more claim for damages has no merit; that there is no merit for a claim for punitive damages under Civil Code section 3294; that there is no affirmative defense to one or more causes of action or claim for damages; that there is no merit to one or more affirmative defenses; or that

one or more defendants owed or did not owe a duty to the plaintiffs. (Code Civ. Proc. § 437c(f)(1).) Unless certain statutory conditions are met under Code of Civil Procedure section 437c(t), summary adjudication must completely dispose of a cause of action, defense, damages claim, or duty issue to which it is directed. (Code of Civ. Proc. § 437c(f)(1); see *Paramount Petroleum Corp. v. Sup. Ct. (Building Materials of Am.)* (2014) 227 Cal.App.4th 226, 243.

B. Summary Adjudication

As an initial matter, with the exception of the issue related to several of Defendant's affirmative defenses, even if Plaintiffs had established the necessary facts to adjudicate the seven issues in its favor, none of the issues would completely dispose of "a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code of Civ. Proc. § 437c(f)(1).) However, the Court need not reach this ultimate issue of whether the issues are the proper subject of a summary adjudication motion because the facts that Plaintiffs established do not support the issues Plaintiffs present for adjudication, nor do Plaintiffs identify, explain or argue which facts pertain to which issues. (Cal. R. Ct., rule 3.1350.) Plaintiffs reference to the lack of "facts" alleged in Defendants' verified answer does not mean there are no triable issues of fact with respect to Defendants' ability to prove any of the asserted affirmative defenses. Accordingly, summary adjudication of the issues is DENIED.

C. Summary Judgment

For Plaintiffs to obtain summary judgment they must establish facts that establish each and every element of their claim and also that Defendant cannot establish any of the asserted affirmative defenses. Plaintiffs have not done so. The established facts leave many triable issues of fact that preclude summary judgment in Plaintiffs' favor. As an initial matter, while this is *Plaintiffs'* motion, Defendant has raised the issue of whether Plaintiffs' claim under the first three causes of action are viable in light of *Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189, 196 & 202, which held that the protections of the Song-Beverly Warranty Act does not extend to cover any used car with an unexpired new car warranty. Second, even if Plaintiffs were to overcome this threshold issue, Plaintiffs are not entitled to summary judgment because there triable issues of fact as to whether Plaintiffs had a new vehicle warranty on their used vehicle, what particular repair issues the vehicle had, the opportunities were provided for repair of same, and whether there were a reasonable number of repair attempts. While the nature of Plaintiffs' claims asserted in the second and third causes of action are not entirely clear, Plaintiffs' have not established entitlement to judgment as a matter of law under the entirety of the Song-Beverly Act for breach of applicable warranty; Plaintiffs have not identified the applicable warranty they allege were breached, or the overall number of repair issues presented to the various BMW dealers, and whether and what was fixed or attempted to be fixed during these repair attempts.

Finally, Plaintiffs' fourth cause of action seeks remedies and damages for a purported violation of California Code of Regulations, Title 13, Section 2037(b), which is enacted pursuant to the Health & Safety Code section 43205. The Health & Safety Code section cited is part of the Division 26 that regulates Air Resources, and within that division imposes certain requirements on manufacturers and dealers of new vehicles, which are enforced by the Department of Motor Vehicles. This Court is unaware of any authorizing section within the applicable code sections that authorize Plaintiffs to assert a private right

of actions thereunder. (*Lu v. Hawaiian Gardens Casino, Inc.* (2010) 50 Cal.4th 592, 596 [“A violation of a state statute does not necessarily give rise to a private cause of action.”].) Even if such a claim is authorized, Plaintiffs do not establish entitlement to judgment, i.e., that Defendant violated the statute and regulation, as a matter of law on the facts established in the Motion. Plaintiffs’ motion for summary judgment is DENIED.